

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

COURT REPORTERS WILL NO LONGER BE PROVIDED FOR TRIAL AND OTHER HEARINGS WHERE LIVE EVIDENCE WILL BE PRESENTED. IF A PARTY DESIRES A COURT REPORTER FOR ANY HEARING INCLUDING, BUT NOT LIMITED TO, LAW AND MOTION MATTERS, EX PARTE MATTERS AND CASE MANAGEMENT CONFERENCES, IT WILL BE THE RESPONSIBILITY OF THAT PARTY TO PROVIDE ITS OWN COURT REPORTER. PARTIES MUST COMPLY WITH THE COURT'S POLICY ON THE USE OF PRO TEMPORE COURT REPORTERS WHICH CAN BE FOUND ON THE COURT'S WEBSITE AT:

[http://www.occourts.org/media/pdf/7-25-2014 Privately Retained Court Reporter Policy.pdf](http://www.occourts.org/media/pdf/7-25-2014%20Privately%20Retained%20Court%20Reporter%20Policy.pdf)

The Orange County Superior Court has implemented administrative orders, policies, and procedures noted on the Court's website to address the limitations and restrictions presented during the COVID-19 pandemic at Civil Covid-19. Due to the fluid nature of this crisis, you are encouraged to frequently check the Court's website at <https://www.occourts.org> for the most up to date information relating to Civil Operations.

Unless otherwise ordered by the Court, all Unlimited and Complex proceedings may be conducted via Zoom or in person. On the date of your hearing click the Department C20 Link to begin the remote online check in/Zoom appearance process:

<https://occourtsapp.occourts.org/aci/checkin-results?dept=C20>

Date: July 16, 2026

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1.	Kumar v. Children's Hospital of Orange County 23-1361438	(Moot)
2.	Doe 1 v. Axis Financial Solutions, Inc. 20-11655934	Pro per defendant Steven Prado's ("Prado") unopposed Motion to Set Aside Default Judgment ("Motion") is DENIED .

		As an initial note, no proof of service was filed showing service of the Motion on plaintiffs Jane Doe 1 and Jane Doe 2 ("Plaintiffs" together). As no opposition was filed, it is unclear if Plaintiffs were served with the Motion and chose not to oppose, or if there was no service. Prado moves for relief under <i>Civ. Proc. Code</i> § 473.5. While that section permits the Motion, it must be filed within the earlier of either two years from entry of default judgment against Prado, or 180 days after service of written notice of the default or default judgment being entered. Here, default judgment was entered on 12/13/22 and Prado filed the Motion on 04/29/26. As the Motion was filed over 16.5 months beyond the filing deadline, it is not timely and relief under <i>Civ. Proc. Code</i> § 473.5 cannot be granted. Even if the Motion had been timely, which again it was not under <i>Civ. Proc. Code</i> § 473.5, Prado has provided no actual evidence aside from his statement, that he was not served with the complaint or other pleadings in this action. This is not sufficient to support the Motion or for the court to grant the requested relief. Based on the above, the Motion is denied without prejudice. <i>Prado to give notice.</i>
3.	Williams v. Southern California Edison 23-1300300	The motion to reopen discovery by plaintiffs Kent Williams and Jodene Williams is DENIED, for the reasons set forth herein. The Court may re-open discovery and allow for further discovery proceedings on the motion of any party. (<i>Code Civ. Proc.</i>, § 2024.050(a).) The motion must be accompanied by a meet and confer declaration showing a reasonable attempt at reaching an informal resolution. (<i>Ibid.</i>) Initially, the meet and confer falls well short of a good faith meet and confer. The purpose of the meet and confer requirement is to encourage the parties to work out their differences informally to avoid the necessity for a formal order and in turn, lessen the burdens upon the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes. (<i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1293.) Here, plaintiffs' counsel sent an email to defense counsel requesting a stipulation to reopen. Defense counsel responded with a proposal that would have resolved half of the motion, if accepted. However, plaintiffs' counsel did not respond and instead filed the motion two days later. As to the merits of the motion, plaintiffs argue that they seek to reopen discovery to take the deposition of a former employee of defendant Southern California Edison Company (SCE) and to serve discovery requesting any <i>subrosa</i> video SCE has obtained of the plaintiffs. Plaintiffs have failed to meet their burden. "In law and motion practice, factual evidence is supplied to the court by way of